

Court No. - 21

Case :- WRIT - C No. - 10194 of 2012

Petitioner :- Dr. Vinay Kumar Goyal

Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- Anubhav Shukla

Hon'ble Ashok Bhushan,J.

Hon'ble Mrs. Sunita Agarwal,J.

Shri Anubhav Shukla, learned counsel for the respondents no. 1 to 4 prays for and is allowed three days' time to obtain instructions.

Put up on 28.2.2012 as a afresh case.

Order Date :- 24.2.2012

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Court No. - 21

Case :- WRIT - C No. - 10194 of 2012

Petitioner :- Dr. Vinay Kumar Goyal

Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- Anubhav Shukla

Hon'ble Ashok Bhushan,J.

Hon'ble Mrs. Sunita Agarwal,J.

As prayed, put up tomorrow as fresh.

Order Date :- 29.2.2012

P.P.

Court No. - 21

Case :- WRIT - C No. - 10194 of 2012

Petitioner :- Dr. Vinay Kumar Goyal

Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- Anubhav Shukla

Hon'ble Ashok Bhushan,J.

Hon'ble Mrs. Sunita Agarwal,J.

Heard learned counsel for the petitioner and Shri Anubhav Shukla, learned counsel for the respondents no. 1 to 4.

By means of this petition, petitioner has prayed for quashing the Memorandum dated 19.1.2012, annexure-12 to the petition and TC letter dated 8.2.2012 issued in consequence thereof.

Petitioner's case is that he has applied for sanction of commercial load of 24 KW(LMV-4(B). Petitioner's case is that without making any inspection of his premises respondents have sanctioned the load of 109 KW. Petitioner's case is that load which has been calculated by technical feasibility report and load calculation memo, the same has been done without proper inspection. He submitted that calculation of load be made in accordance with Clause 4.9 of Electricity Supply Code, 2005.

In view of the facts of the present case and submission made, we are of the view that the ends of justice will be served to direct the respondent no.3 to make inspection of the premises and submit report regarding required load of the premises.

In view of the allegation having been made against respondent no.5, the said official shall not be in the inspection team.

Let the report be submitted within two weeks.

List on 19th March, 2012 in the additional cause list .

We however also give liberty to the petitioner to make appropriate application before the respondent 2 requesting him to release load of 24 KW under the aforesaid Supply Code, 2005, till a decision is taken regarding the load to be sanctioned on the inspection as directed above. It shall be open for the respondent no. 2 to consider the application of the petitioner

Order Date :- 2.3.2012

Atul kr. sri.

Court No. - 9

Case :- WRIT - C No. - 10194 of 2012

Petitioner :- Dr. Vinay Kumar Goyal

Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- Anubhav Shukla,S.C.

Hon'ble Yatindra Singh,J.

Hon'ble B. Amit Sthalekar,J.

Counsel for the petitioner prays for and is granted three days' time to file amendment application.

List this petition in the week commencing 2nd April, 2012.

In the meantime, counter affidavit may be filed.

Order Date :- 21.3.2012

SFH

Court No. - 9

Case :- WRIT - C No. - 10194 of 2012

Petitioner :- Dr. Vinay Kumar Goyal

Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- B.C. Rai

Respondent Counsel :- Anubhav Shukla,S.C.

Hon'ble Yatindra Singh,J.

Hon'ble B. Amit Sthalekar,J.

1. This writ petition was filed against the office memorandum dated 19.1.2012 issued by the Chief Engineer and the TC letter dated 8.2.2012.
2. The writ petition was entertained and an order was passed on 2.3.2012 granting liberty to the petitioner to file an application before the Chief Engineer.
3. The Chief Engineer has rejected the application on 17.3.2012.
4. The petitioner has filed application for amendment of the writ petition.
5. We have heard counsel for the parties.
6. Considering the circumstances and subsequent order the writ petition as well as amendment application is dismissed. However, it will not only be open to the petitioner to challenge the order passed during the pendency of the writ petition but also the orders that were impugned in the present writ petition.

Order Date :- 9.4.2012

Asha